

Warsaw, September 16, 2022

Decision

DKE.523.36.2021

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735), Article 60, Article 160 paragraphs 1, 2, and 3 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781), and Article 6 paragraph 1, Article 17 paragraph 3 letter e), Article 57 paragraph 1 letters a) and f) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC, after conducting administrative proceedings regarding the complaint of Mr. C. W., residing in S. at ul. (...), concerning the order to R. sp. z o.o. based in W. at ul. (...), to cease the publication of the Complainant's personal data in the search results of the internet portal (...).pl, which includes a court judgment and data regarding the Complainant's arrest in the USA, the President of the Personal Data Protection Office denies the request.

REASONING

To the General Inspector for Personal Data Protection (hereinafter also "GIODO"), currently the President of the Personal Data Protection Office (hereinafter also "President UODO"), a complaint was submitted by Mr. C. W., residing in S. at ul. (...), concerning the order to R. sp. z o.o. based in W. at ul. (...), (hereinafter also referred to as "the Company") to cease the publication of the Complainant's personal data in the search results of the internet portal (...).pl, which includes a court judgment and data regarding the Complainant's arrest in the USA, in relation to the following websites:

- (...)
- (...)
- (...)

Factual Background

During the conducted proceedings, the President of the Personal Data Protection Office established the following factual background.

The administrator of the internet portal (...).pl is R. sp. z o.o. based in W. The portal (...).pl provides users with an internet search engine, allowing them to search resources collected on the Internet. Access to the search engine is possible from the main page of the portal (...).pl and at the address (...).pl. The operator of the search engine is G. Ltd. based in Ireland at (...), which provides the search engine mechanism and search results.

After entering the first name and/or surname of the Complainant, in the configurations: "(...)", "(...)" and "(...)" - in the window indicated in point 1 of the search engine, among the search results, there are links to websites containing the Complainant's personal data related to a conviction in the USA for the crime (...):

- (...)
- (...)
- (...)
- (...)

The Complainant did not submit a request to the Company to cease processing his personal data in the search results indicated in point 1. In a letter to the authority dated November 14, 2019, the Complainant informed the authority that he stated: "I also inform you that I did not submit a request for the removal of my personal data from the search results of the search engine (...) to the entity O. S.A. (...) In 2016, when I submitted requests for the removal of my personal data, only G. and M. provided forms for this purpose. After receiving negative responses from G. and M. (...), I doubted the possibility of taking any action by other entities owning search engines, especially since I was advised to resolve disputes directly with the owners of the websites publishing my personal data."

The above was established based on explanations and printed search results presented by the Complainant, explanations from R. sp. z o.o., and the authority's own findings, which involved checking the search results of the Complainant's data in the search engine indicated in point 1 of the

reasoning.

Legal Reasoning

After analyzing the evidence gathered in the case, the President of the Personal Data Protection Office states the following.

Regulations

As of May 25, 2018, the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1 and OJ EU L 127 of 23.05.2018, p. 2), hereinafter also referred to as "GDPR," applies.

As of May 25, 2018, the provisions of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781), hereinafter also referred to as "the 2018 Personal Data Protection Act," came into force.

According to Article 160 paragraphs 1-3 of the Personal Data Protection Act...

personal data from 2018, proceedings conducted by the General Inspector for Personal Data Protection, initiated and not concluded before the entry into force of this Act, are conducted by the President of the Office for Personal Data Protection based on the Act of August 29, 1997 on Personal Data Protection (Journal of Laws of 2016, item 922, as amended), in accordance with the principles specified in the Code of Administrative Procedure. At the same time, actions taken in proceedings initiated and not concluded before the entry into force of the provisions of the Personal Data Protection Act of 2018 remain effective.

According to Article 18(1) of the Personal Data Protection Act (Journal of Laws of 2016, item 922, as amended) in conjunction with Article 160(1-3) of the Personal Data Protection Act of 2018, the President of the UODO, ex officio or at the request of the interested party, by way of an administrative decision, orders the restoration of a lawful state, and in particular the removal of irregularities (point 1), supplementation, updating, correction, provision or non-provision of personal data (point 2).

The processing of personal data is lawful when the data controller has at least one of the grounds specified in Article 6(1) of the GDPR for processing personal data. According to the aforementioned provision, the processing of personal data is lawful only if one of the listed conditions is met: a) the data subject has given consent to the processing of their personal data for one or more specific purposes; b) processing is necessary for the performance of a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering into a contract; c) processing is necessary for compliance with a legal obligation to which the controller is subject; d) processing is necessary to protect the vital interests of the data subject or another natural person; e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child (Article 6(1)(f) GDPR).

According to Article 17(1) GDPR, the data subject has the right to request the controller to erase their personal data without undue delay, and the controller is obliged to erase the personal data without undue delay, inter alia, if the data subject objects under Article 21(1) GDPR to the processing and there are no overriding legitimate grounds for the processing or if the data subject objects under Article 21(2) to the processing (letter c). Article 21(1) GDPR grants the data subject the right to object at any time, on grounds relating to their particular situation, to processing of personal data concerning them which is based on Article 6(1)(e) or (f), including profiling based on those provisions, indicating at the same time that the controller may no longer process such personal data unless it demonstrates the existence of compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or grounds for the establishment, exercise, or defense of legal claims.

In a situation where the request provided for in Article 21(1) GDPR is justified, the data subject has the right to effectively demand the realization of the right to be forgotten (Article 17(1)(c) GDPR). Citing

Recital 47 GDPR, it should be indicated that the legal basis for processing may be the legitimate interests of the controller, including the controller to whom personal data may be disclosed, or a third party, provided that, in light of the reasonable expectations of the data subjects based on their relationships with the controller, the interests or fundamental rights and freedoms of the data subject do not override. Such a legitimate interest may exist, for example, in cases where there is a significant and appropriate kind of connection between the data subject and the controller, for instance, when the data subject is a client of the controller or acts on its behalf. It should be recognized that pursuing financial claims is a legitimate interest of the controller within the meaning of the GDPR. Pursuing claims and processing adequate personal data for this purpose does not constitute a disproportionate limitation of the rights and freedoms of the data subject.

Legal Assessment

Referring the above-mentioned provisions and case law to the factual state established in this case, it is necessary to first assess whether the personal data of the Complainant is processed lawfully, i.e., whether the conditions from Article 6 GDPR have been met. A significant ruling in this regard was issued on May 13, 2014, by the Court of Justice of the European Union, hereinafter referred to as "CJEU," in the judgment in case C-131/12 Google Spain and Google Inc against Agencia Española de Protección de Datos (AEPD) and Mario Costeja González, hereinafter referred to as the "Google Spain judgment," in which it was recognized that search engine operators process personal data within the meaning of Article 2 of Directive 95/46/EC of the European Parliament and of the Council of October 24, 1995, on the protection of individuals with regard to the processing of personal data and on the free movement of such data, hereinafter referred to as "Directive 95/46/EC" (paragraphs 27 and 28 of the Google Spain judgment).

Google Spain). The operator of the search engine defines the objectives and methods of conducting this activity, and thus the processing of personal data within this framework, and consequently, based on Article 2(d) of Directive 95/46/EC, they should be recognized as the "controller" of the data processed in this manner (paragraph 33 of the judgment in the case of Google Spain). It is significant that the processing of personal data that occurs within the operation of the search engine differs from that carried out by website publishers, which involves placing such data on a website, and has an additional character in relation to it (paragraph 35 of the judgment in the case of Google Spain). In the judgment of the Court of Justice of the European Union (CJEU) in the case of Google Spain, it was rightly indicated that the legal basis for the aforementioned processing of personal data is Article 7(f) of Directive 95/46/EC, which refers to the necessity of processing for the purposes arising from the legitimate interests of the controller or third parties to whom the data are disclosed (paragraph 73 of the judgment in the case of Google Spain). The findings made by the Court of Justice in the judgment in the case of Google Spain remain relevant despite the repeal of Directive 95/46/EC. Article 7(f) of Directive 95/46/EC is indeed identical to Article 6(1)(f) of the General Data Protection Regulation (GDPR). In the judgment in the case of Google Spain, the CJEU indicated that the rights provided for in Articles 7 and 8 of the Charter of Fundamental Rights are, in principle, superior to the interest that recipients may have in finding information in the context of searches conducted regarding the name of a given person. However, the CJEU simultaneously stated that the supremacy of the right to privacy and the protection of personal data does not occur if, for specific reasons, such as the role played by a given person in public life, it should be recognized that interference with the fundamental rights of that person is justified by the overriding interest of the group of recipients, consisting of having access to that information, due to its inclusion in the search results list (see paragraph 97 of the judgment). The criterion of playing a role in public life is also indicated in the CJEU judgment of September 24, 2019, in case C-136/17 GC, AF, BH, ED against the Commission nationale de l'informatique et des libertés (CNIL), hereinafter referred to as the "CNIL judgment," in relation to specific categories of data (paragraphs 66 and 77 of the judgment). As indicated by the Article 29 Working Party, the CJEU thereby made an exception to the principle of the supremacy of the right to privacy in cases of requests for the removal of links from search results submitted by individuals who play a role in public life when there is a public interest in having access to that information. The Article 29 Working Party on Data Protection adopted guidelines on November 26, 2014, regarding the implementation of the CJEU

judgment in the case of Google Spain, hereinafter referred to as "WP225 guidelines."

In the indicated WP225 guidelines, a list of criteria was developed to be used by data protection authorities when assessing compliance with the law regarding the refusal to consider requests for removal from search results by search engine operators. Among the criteria to be taken into account when assessing a request for the removal of personal data are, among others, whether the data concern a person holding a public office, whether they are true, whether they relate to professional or private activities, whether the processing of the data causes harm to the person concerned, and whether the data have a disproportionately negative impact on the privacy of the person concerned. It was emphasized that a good principle when assessing the public interest in having access to specific information provided in search results based on the name of the person concerned is to determine whether having that information could protect other individuals from improper public or professional behavior of the person concerned.

From the argumentation presented above, it follows that the fact of processing personal data by search engines does not necessarily mean that such processing is unlawful. The legal basis for the processing of data by search engines is Article 6(1)(f) of the GDPR, i.e., processing necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests or fundamental rights and freedoms of the data subject, which require protection of personal data, override those interests, particularly when the data subject is a child.

The role of the data protection authority is to assess the legality of the processing of personal data. A prerequisite for this assessment is - in the case of processing such data by a search engine - a prior request from the data subject to the search engine controller, containing an objection to the processing of personal data or a request for the deletion of such data. Only feedback from the controller, in the form of rejection or ignoring this request, provides grounds for questioning the legality of such processing. The complainant did not submit a request to any entity containing an objection to the processing of personal data or a request for the deletion of such data from the search engine (...).pl. Therefore, in this proceeding, it is not possible to assess the legality of the processing of the complainant's data in this search engine. The complainant should attempt to exercise their rights arising from Articles 17 or 21 of the GDPR, and only as a result of a possible refusal or lack of response from the search engine operator, should they file a complaint with the President of the Personal Data Protection Office (UODO).

In light of the above, there are no grounds for the President of the UODO to issue any decision ordering the restoration of compliance with the law in the case at hand. In this factual and legal situation, the President of the Personal Data Protection Office decided as stated in the operative part.

Pursuant to Article 127 § 3 of the Administrative Procedure Code, the party has the right to submit a request for reconsideration of the case within 14 days from the date of its delivery to the party. If the party does not wish to exercise the right to submit a request for reconsideration of the case, they have the right to file a complaint against the decision to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery to the party. The complaint is submitted through the President of the Personal Data Protection Office (address: ul. Stawki 2, 00-93 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for legal aid, including exemption from court fees.

Print Article

Metadata

Providing entity:

Department of Punishments and Enforcement

Information created by:

Jan Nowak

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Information entered by:

Mathias Proch

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